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LAW OF TORTS PPL 301

TOPICAL COMPENDIUM 2

TRESPASS TO PERSON

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P.S. Austin-Osu SEM

PHASE ONE: INTRODUCTION

1. One of the issues discussed in the topical compendium 1 is the fact that the primary remedy provided in the law of torts is damages. Students should examine the definition of damages and the purpose of damages as enunciated in the case of U.B.A. V. OGUNDOKUN (2009) 6 NWLR (PT 1138) 450
2. Trespass to person is a conglomeration of 3 torts: Assault, Battery and False Imprisonment.
3. In the case of Fowler V. Lanning, it was held that proof of intention or negligence was crucial to success in trespass to person.
4. Battery and Assault are related torts. Battery is the intentional application of force to another person. Assault means putting a plaintiff in fear that battery is about to be committed against him. If Bola Chicago raises his hand and threatens to slap Joy Nyanga, he has committed assault but no battery. If he actually slaps Joy Nyanga he has committed battery. Because the tort of battery often follows shortly after assault, the tort is described as assault and battery.

PHASE 2 ASSAULT

1. In Assault, 2 elements must be proved:
 - a. That the defendant directed threat at the plaintiff

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- b. That the plaintiff was put in reasonable apprehension of harm to his person
 - 2. Assault can be committed without battery, where Bola Chicago aims a blow at Joy Nyanga without successfully hitting her because the blow was intercepted by Bonnyface.

3. CHARACTERISTICS OF ASSAULT

- a. Not every threat constitutes assault. There would be no assault if the plaintiff put himself in the way of the defendant for instance where Joy Nyanga knowing that Bola Chicago is not pleased with her walks up to him and says "why are you just looking at me - if you are a man hit me."
- b. In assault, the reasonable man's test is applied. There would be no assault if a reasonable man would not have been afraid as a result of the threat. Example where 7 years old bright threatens to beat up 23 years old Joy Nyanga. Conversely if the plaintiff was exceptionally brave and was not afraid but a reasonable man would be afraid, then the defendant would be liable. This is because a reasonable man in the law of trespass to person means a man of ordinary courage. In *R V BARRET*, the defendant advanced at the plaintiff shook his fist angrily at him and threatened to beat him there and then. It was held to be assault. In *Brady V. Schatzel*, the defendant pointed a gun and threatened to shoot the plaintiff. The plaintiff sued for assault. The plaintiff testified in court that he was not frightened of the threat. The court held that nevertheless there was assault.
- c. An act would not be assault where the plaintiff could not see the threatening action.

- d. An act would be assault even though the defendant lacks the ability to carry it out. Example Bola points a gun at Joy Nyanga but Bola knows the gun is not loaded but Joy Nyanga does not know. Thus in *R. V. St. George* the defendant who pointed an unloaded gun at the plaintiff was held to have committed assault because the plaintiff thought the gun was loaded.
- e. Assault is actionable per se. Therefore the plaintiff must not necessarily be harmed by the activities of the defendant. Also the act must not be a hostile act.
- f. Where an employer orders his employee to throw out a third party followed by threatening words it is assault. In *In Read v. Cooker*, the plaintiff and defendant were business partners. Following an altercation, the defendant ordered his workmen to throw the plaintiff out of his premises. They then surrounded the plaintiff rolling up their sleeves and threatening to break his neck if he did not leave the premises. The court held that there was assault.
- g. Words alone cannot constitute assault.
- h. Words may negate assault: In *Tuberville V. Savage*, the defendant put his hand on his sword in a menacing manner and told the plaintiff if it were not for the assize I would not take such language from you. The court held that there was no assault as the language clearly showed that there was no intent to do battery. However, the words must express a clear and unambiguous intent to not carry out the threat. In *R V. Light*, the husband put a sword on his wife's head and told her that: "if it were not for the bloody policeman outside I would split your head open. The court held that it was assault. The rationale for this judgment is that the woman was put in apprehension that any time the police officer left her head would be split.

PHASE THREE BATTERY

1. Battery is applying force however slight on another person hostilely or against his will. In *Cole V. Turner*, it was held that the least touching of another in anger is battery.
2. Battery can be committed without assault where Bola Chicago who has been nursing grudges against Joy Nyanga approaches Joy Nyanga silently from behind and gives her a blow on the head. Or where Joy Nyanga strikes Bola Chicago with a stick while he is asleep.
3. In an action for battery, the plaintiff must prove 2 elements:
 - That the plaintiff applied force to his physical person
 - That the application of force was intentional or negligent. In the case of *Fagan v. Metropolitan Police Commissioner*, a police officer asked the defendant to park his car. The defendant drove his car on the police man's foot. The policeman asked the defendant to move the car and he refused, the court held it was battery.
4. Characteristics of Battery:
 - a. It is not necessary that there must bodily contact. Activities such as stone throwing or shooting an arrow would suffice. In *Pursell v. Horn*, the defendant threw water on the plaintiff. It was held to be battery.
 - b. It is battery for a man to instruct his servant to beat up another man. In *Nwankwa v. Ajaegbo*, a servant of the defendant acting on the defendants instruction beat up the plaintiff. The defendant was held liable for trespass to person.
 - c. Contacts that fall within the accepted usage of everyday life are not actionable. Thus in *Donnelly V. Jackman* it was held not to be battery for a police officer to tap a person on the shoulder to draw attention to the fact that he was being called by the police officer. In *Colt V. Turner*, it was stated per Holt CJ that: "If 2 or more people meet in a narrow passage, and without any violence or design of harm, the one touches the other

- gently, it is no battery. If any of them uses violence against the other, to force his way in a rude inordinate manner, it is battery; or any struggle about the passage to that degree as may do hurt is battery."
- d. Not every act constitutes battery. There would be no battery if the plaintiff put himself in the way of the defendant for instance where Joy Nyanga knowing that Bola Chicago is driving out runs in front of his car and is narrowly missed by Bola Chicago.
- e. Battery is actionable per se. Thus battery need not be violent, inflict pain nor injury.
- f. Medical care on expert advice without the consent of the patient is usually not battery. *F V. West Berkshire Health Authority*, the court ordered the sterilization of a woman suffering from serious mental disability. The defendant who had applied for the sterilization on medical consideration. She sued the defendant for battery. The court held that there was no battery.
- g. Where police officers go beyond accepted police duties it is battery. In *Afisi V. Aghakpe*, some police officers beat up the plaintiff. It was held to be battery.
- h. In England there is a debate as to whether purely negligent acts can constitute battery. In *Fowler V. Lanning* the Court of First Instance (High Court) held that all categories of trespass to person can arise either negligently or intentionally. In *Letang V. Cooper*, the plaintiff was lying on the beach. The defendant carelessly drove his car on her leg in the beach. She brought an action for battery and the Court of Appeal held that she only had a cause of action in negligence.

- i. In Nigeria, the supreme court in the case of OKEKEARU V. TANKO has ruled that an action in battery can arise from negligence or intentional acts. In this case the defendant a medical practitioner was held to be guilty of battery when he carelessly amputated the plaintiff's finger.
- j. It is no defence to an action for battery that the defendant and the plaintiff are in a relationship such as marriage.

PHASE 4: FALSE IMPRISONMENT

1. False imprisonment simply means the total restraint of a person without lawful justification. It is depriving a man of his personal liberty without legitimate reason.
2. CHARACTERISTICS OF FALSE IMPRISONMENT:
 - a. Confinement is not necessary. In Union Bank of Nigeria v. Ajagu, the plaintiff went to the defendant bank for a transaction. After his transaction, the security officer of the defendant bank locked the gate of the bank and did not allow him to leave the bank premises for over an hour. The court held that it was false imprisonment.
 - b. It must not be a proper prison or Police cell. In Burton V. Davies, the plaintiff was riding a public bus driven by the defendant. When he got to his bus stop, he indicated his intention to come down, but the defendant refused to stop. It was held to be false imprisonment.
 - c. Any act that prevents a person from enjoying his right to personal liberty or freedom of movement is false imprisonment. In Warner V. Riddiford, the defendant sacked the plaintiff his resident manager and locked the plaintiff's room. The plaintiff could not take his personal belongings and leave for several hours. It was held to be false imprisonment.

- d. The means of restraint must not be physical. In *The Queen V. Sambo*, Sambo caught a girl on the street, took her to his house, hypnotized her and she was unable to move or speak until her father came to her rescue with a police officer. He negotiated to release her from her hypnotic trance if they would be gentle with him. They agreed. He called her name 3 times and chanted some words and she was free from the trance and recognized her father and spoke. The court held it to be false imprisonment.
- e. The restraint must be total. In *Bird V. Jones*, a bridge construction company lawfully stopped a public footpath. The plaintiff insisted on using the footpath. The defendant asked him to use an alternative longer route. The plaintiff insisted and there was an argument between him and the defendant in which he was prevented from using the footpath for 30 minutes. He sued for false imprisonment. It was held that there was no false imprisonment.
- f. Where the false imprisonment is based on the plaintiff's action or inaction, the defendant would not be liable. In *Herd V. Weardale Steel Coke and Coal Ltd*, the plaintiff was contracted to work in a mine for a specific shift. The mine lift traditionally enters the mine at the start of the shift and comes out at the end of the shift. On getting into the mine, there was a dispute between the defendant and his foreman. He asked to be brought up with the lift, but the foreman refused. He was left in the mine until the end of his shift. It was held that there was no false imprisonment as the plaintiff went into the mine voluntarily and the mine had its standard practice.
- g. It is not necessary that physical force is applied on the plaintiff. In *Aigoro v. Anebunwa*, the plaintiff was in a train station about to board a train when the defendant called a police officer to prevent him from leaving the train. No

physical force was used to restrain him. The court held that it was false imprisonment.

- h. False Imprisonment would be presumed where a person is regularly arrested. In *COP ONDO STATE V. OBOLO* the plaintiff was routinely picked as a suspect whenever there was a case of robbery. He sued for false imprisonment and breach of his right to liberty. The court held that it amounted to false imprisonment.
- i. Restraint for the shortest period of time is false imprisonment.
- j. In the past it was not false imprisonment to detain a person to recover a debt. In *Herring V. Boyle*, it was held not to be false imprisonment to detain a child in school during holiday because the parents owed school fees. However, this trend is changing in Nigeria. In *OSEGBO V. THE REGISTERED TRUSTEES OF THE SYNOD OF THE DIOCESE OF THE NIGER DELTA*, the plaintiffs a couple, took their 11 month old baby to the missionary hospital run by the respondent for treatment. While receiving treatment the baby died. The hospital then detained the plaintiffs until the full hospital bills were paid. One of the plaintiffs, (the husband) begged to be released to go raise the money but the hospital refused. They eventually paid the money and were released. They sued for false imprisonment. The High Court of Anambra State held that it was false imprisonment.
- k. It is not false imprisonment if the plaintiff refused to fulfil a condition for exit. In *Robinson V. Balmain*, the plaintiff was detained for 20 minutes because he entered a wharf to ride a boat and paid 1 penny. But the next boat was 20 minutes time. He wanted to leave the wharf and he was asked to pay 1 penny to exit the wharf but he refused. The court held it was no false imprisonment.

1. False imprisonment is actionable per se.
3. Both the person who called the police and the police are joint tortfeasors.
4. As regards the principle of setting the Police in Motion, Students should familiarise themselves with the following cases:
 - Onyedinma V. NNITE (1997) 3 N.W.L.R. (PT 493) 333
 - Nwadinobi V. Botu (2002) FWLR (PT 96) 450
 - Mainstreet Bank PLC V. EGWU (2015) 15 N.W.L.R. (PT 1482) 336
 - Isheno v. Julius Berger Plc (2008) 6 NWLR (PT 1084) 582
 - Ojo V. Lasisi (2003) 7 NWLR (PT 819).

PHASE FIVE: DEFENCES TO TRESPASS TO PERSON

1. Consent of the Plaintiff: Expressed in the Latin maxim *volenti no fit injuria*.
Where a person consents to be a boxer etc.
2. Self Defence: The law generally accepts the fact that self-defence by proportionate measures would avail a defendant against battery.
3. Defence of Property: Again in a tort of battery, the defence of property would avail a defendant.
4. Lawful Arrest: by the police and other law enforcement agents. In *Jackson V. Omorokuna*, the plaintiff and another were seen dragging a motor cycle in the night in a high crime area. The defendant a Police Officer demanded of them the particulars of the motor cycle and the ignition key. When these could not be produced he arrested them and took them to the police station where they were detained and later released. In an action for unlawful arrest and false imprisonment, the court held that there was no false imprisonment or unlawful arrest. Iguh J. stated that a reasonable man without prejudice or passion would have arrested them in the circumstances. Arrest must not necessarily

be by the Police. In *John Lewis V. Tims*, the Respondent and her daughter were arrested by private security of the appellant company for stealing in their supermarket. They were detained in the supermarket for 1 hour because the security personnel were waiting for the manager who was absent. When the manager arrived they were handed to the police. They sued for false imprisonment on the grounds that the detention in the Supermarket was unlawful. The court held that there was no false imprisonment.

5. Accident:

6. Statutory Authority: In *Wiltshire V. Barret*, the respondent was stopped by the Police on suspicion of driving under the influence of alcohol. When asked to get out of his car he refused. He clung to the steering wheel with his feet pressed against the floor of the car. The Police Officer radioed for assistance and with the help of other Police Officers he was forcefully arrested. At the Police Station he was tested for alcohol and found to not be under the influence of alcohol. He was released. He sued the Police for assault, battery and unlawful arrest. The Court of Appeal dismissed the suit on the grounds that there was reasonable grounds for an "honest belief in the guilt of the respondent."

7. Parental or Other Authority: Students should examine the Court's enunciation of the principle of parental authority in the case of *EKEOGU V. ALIRI* (1991) 3 NWLR (PT 179)258

8. Necessity